

Minutes from the meeting at Council Chambers, 12 Stewart Ave, Newcastle West

Monday the 23rd of February, 2026.

Minutes taken by Megan Mathews. Minor edits (expanding abbreviations, fixing some spelling etc.) by same. “.,,” “...” or “.,.” indicates speech that wasn’t captured.

Words in italics are my own, added for context.

Speakers:

Rob

Melissa Gore (Mel)

Andrew Ball (Andy)

Jeremy Bath (jb)

Mark Allman, RCA (Mark)

Janelle Pearson, NSW RA (Jan)

Sam Nearey, CoN Assets Location Manager

5:34pm: Mel says we’re just waiting for ppl
soundcheck

5:36 Mel: we hav ppl online tonight plz speak clear

welcome ty, I’d like to acknoelwd custionida awabala worimi, pay rpstcs & extend that to ATSI ppl here. I’m melissa gore local rec.,,

We have reps from CoN, n Sandy n Garry red cross, reps from nsw police Mr Marshal RA Janelle n Lauren observing, curious to hear as well. Hosukeeping: this exit to my left the bathroms r through this door, the emergy exit is here too, plz wait there n Alicia will manage you.

Purpose of tonight is to brief you in the geotech report. This is a milestone there is still a journey ahead. Tonight is about the briefing. You will have a lot of qs, later we will come back n have a q n a. Tonight is a technical report. Wanna make sure you hear from RCA, may need to take qs on notice.

There’s a lot of attention atm, we’re aware that comes back on you. It is in the headlines. Wanna call out that we’re aware of the impact on everybody.

General courtesy reminder, allow everybody the chance to speak. Plz try n speak clearly n slowly, ppl online will operate the chat through to alicia. We have about 2 hours tonight. Not gonna rush anybody out tonight.

At the conclusion we’ll be sending you a link. The report is 400 pages. It can’t be attached to email. Idk who loves to read 400 pgs but there’s a lot in it. So again we’re all here we all wanna listen n I look forward to hearing the presenation from rca myself n any qs you might have. So ty I’m gonna hand over to jeremy bath. At any time feel free to have a cuppa. It’s a lot of info to take in

jb: I’m the ceo of the coN. You’re here tonight to hear from the experts. This is a meeting just for you. Counillors aren’t here bc they didn’t wanna be, councillor’s aren’t here bc we explained to them that frankly we feel it wouldn’t be appropriate for them to be here.,. empathise.,. We’ve scheduled a meting tentativ for a weeks’ time... if that’s too soon...a lot to digest.... Itwas my decision to not invite the other councillors to this meeting tonight.

In terms of tonight, it’s an opportunity for you to hear for the first time regarding the geotech report. Last wk there’s been a lot of discussion regarding ways fwd, it’s very positive that we have ppl here tonight from the RA, ty for coming to learn more about the geotech rpeort n to hear from the residnets... for those of youthat watched the parliamentary enquiry last Fri, mel, rob n mylself attended the parl enq into the RA, it was specifically focussed on its response to the natural disatster that occurred in may last yr. It wasn’t specific to what you have gone through.,. We didn’t make commentary in regard to the overall performance of the RA, just limited ourselves to New Lambton.,. there’s a trnascript on the parliamentary website... 40 odd minutes that we were given to

speaking with the committee... We'll share a link with that (*prob tomorrow*)... Certainly I felt we got a very good hearing...our focus...you get fair treatment... One of the messages that I've heard from a number of you is ...what you see as squabbling (*between local and state governments*). I get it, you don't really care who's going to help you ...it's immaterial you just need help. We get that. We take no offence to the commentary. You just want assistance. What I will say is I felt a very strong reaction from a number of the committee members that (*they think that*) more needs to be done ... having this geotech report is a game changer from our perspective. The RA have always said that they'd have a conversation with us once the report is finalised. ... it was only 1 meeting but it was a very positive conversation. They acknowledged that the report had been peer reviewed which is important because what you don't want to have is ...poking holes in the geotech report. So having it peer reviewed by the NSW gov is a critical (*step*)... pathway that's gonna get you back to your homes... potentially somewhere other than where your homes actually are... thank you all for being here, as Mel said we've scheduled 2 hours... we'll stay here tonight to answer questions... doing that advocacy on your behalf.

I received a letter from RA on the 30th Jan this yr which for the first time clarified in their mind why they don't believe this has been a recovery that should be led by the NSW government. (*The RA's reason/s was/were that*) they have a state recovery plan, there's a clause in there that identifies ... levels for nat disaster (*it's section 6.3- page 30 in here*

<https://recovery.preventionweb.net/media/100289/download?startDownload=20260301> which defines 4 levels of severity of disasters- low, medium, high and catastrophic.) ... the disaster was low severity. Under the recovery plan, low severity means that the responsibility for leading recovery sits with local council. We don't have clarification yet how they came to (*the conclusion that*) it's low severity...I would argue that it's not even medium it's probably high (*severity*).

(*Editor's note: This NSW Recovery Plan defines a high-severity activation model as one in response to a disaster that has occurred across multiple LGAs, thus the landslide itself cannot be classified as "High Severity"*).

The landslide seems to fit the Medium Severity model- "6.3.6. Where a single event or multiple events moderately impact one or multiple LGAs and there is a moderate disruption to communities and physical infrastructure, the combat agency / EOCON, in consultation with the RA, identifies the need for assistance from the state to provide resourcing for the affected local council and advises recovery operations. The most appropriate recovery service model will be activated to provide services to affected communities. The SERCON may decide to confirm the appointment of a Recovery Coordinator."

or a Low Severity model- "6.3.1. Where an event impacts a single LGA or causes limited disruption to communities and damage to physical infrastructure, the affected local council leads the recovery operations, and where possible, from its own resources. A Local Recovery Committee may be established. The most appropriate recovery service model will be activated to provide services to affected communities."

The RA has taken this position over the last 9 months... we don't agree with it but at least we've got something now with which we can debate and convince them to take a different view.

Nathan: I'm more than happy for them to sit in my dining room while they consider their decision.

[murmurs of agreement]...

Jb: ...my understanding is that the severity level for all the other areas that the same natural disaster hit was considered to be medium.

My colleague Andy Ball... he's gonna give you a high level overview of the geotech findings.

Mel: ppl online can't see...

Andy: gonna recap on what RCA were asked to do. You may recall in July I mentioned that we deliberately scoped a brief to RCA... we spent time with TfNSW...make sure funding... by taking out

that complexity it allowed that to move forward. In looking at what happened to the landslip... doesn't mean they haven't looked at someone's particular property... idea was look at it in a wholistic approach. It acknowledges that private dwellings are damaged but doesn't offer a detailed ..of properties. W that in mind we've asked for an additional ... w RCA and BG&E structural engineers... they're here... it's roads its footpaths it's stormwater drains ... try to provide u a link for what does it actually mean for your property... what will need to be addressed to reoccupy or rebuild? Purpose is aimed at advising u as owners n assisting CoN planning n compliance team, likely to offer benefits to LEOCON, ultimately that's where the danger area declaration is managed (*with the police*). What the property reports don't do, they dont give individual solutions. It does help paint a picture for you for what needs to be addressed to move forward, it lays the platform. Hopefully we've hit the mark. In addition to that is a structural report on everybody's properties . There's a benefit for the owner n for CoN compliance.. when discussions occur around demolition of structures... probably started to experience that now (*challenges*).. reports help support any decision that need to be made there. May be beneficial if you're still working w insurance. The intention was for this evening for u to b issued 4 docs: the geotech report, in addition to that we asked for "conceptual options" for stablisation from RCA- what will be needed to remediate the site. It's touched on in the report.. end of the day the report is investigations and finding...doens't tell you here's the problem n here's all the solutions all the way home. We asked rca to give us a little more context ... if we .. structural berm around the bottom of the slope, what does that mean for us, if we have to put piling in the ... what does that mean. So we have some..... The intention was to provide you individual geotech links n individual structural reports this evening, unfortunately we didn't have them ready to go. On those reports there's a front end report which provides a little link n summary of findings. ... it will come to the CoN with 19 appendices. Each appendix is representative of the impacted properties. For privacy reasons you'll be issued w a link that gives you the main body and the appendix that gives you .. to your address. If you choose to share it w your neighbours, that's totally fine... Last thing I think you may see or hear about is over the course of the next week n a half we will be putting in monitoring equipment along Russell Rd and Victoria St.... our survey team r currently doing fortnightly pickups n have been doing so for,

Rob: they were doing daily

Andy: earlier they were... think iv'e talked enough,... eveyrone wants to hear from Mark.

Question from James S: can you confirm what documents have been peer reviewed by public works & TfNSW?

Andy: It was the primary report w the remediation options memo.

In terms of the response or summary from peer review it was favourable, it was positive, they were comfortable w the methodology n findings n general approach taken, it was high quality industry standard. That's what was peer reviewed.

In terms of additional works,.. that wasn't provided to TfNSW or Public Works.

Mark: thanks Andy. Good evening . I was the geotechnical engineer on site in the dreadful week after this...I'm a principal geotechnical engineer at RCA (*Robert Carr & Associates*). I've got 2 of my colleagues here tonight Jeremy Everitt who probably has the most granular understanding here and Bob Carr principal geotechnical engineer as well.

Engaged by council... 9 months later here we r . we've delivered the report... 399pgs. Ive prepared maybe 20 pgs of a presentation. Some r textual some r graphical. Some graphical ones might be

hard to see. Not quite sure how well it's gonna show up n your screens but you will get the opportunity to look at it on your own screens in due course.

1st slide: photo of the scarp at the top that we took on the morning of the 23rd of May 2025. A landslide had developed quickly n dramatically.

Content: background, summary of investigation, summary of findings, what now, questions.

3rd slide: background. New Lambton landslide occurred late on the night of the 22nd May 2025/early morning of the 23rd. Very heavy rainfall was recorded preceding and on the night of the landslide.

The rainfall event was subsequently classified as a disaster event. I had a quick look today, n that classification covered pretty much the entire seaboard,...the Hunter Vally was sorta centred on where that East Coast Low affected.

We went out to site on the morning at the instruction of Council. Sam rang me that morning n said have you got someone to come out n in 30 seconds my phone rang n it was a senior engineer that I knew... we went straight to site that morning.

There was evidence of significant mvmt damage...15 properties evacuated that morning... as Andy mentioned there's 3 additional properties not evacuated, we'll call them impacted or affected.

RCA was engaged by CoN to provide an investigation n report. Investigation has been issued in the last week or so n a summary of the findings follows. You're not geotech engineers n there's a lot of jargon in the report, gonna try to give it a layperson's...happy to deal w questions as well.

Warren: do you mind if we take pictures of your slide?

Mark: I don't mind...

Jb: no...presentation will be shared

Mark: as a geotechnical eng we tend to ply our trade behind computers. So it's unusual to find 40-50 ppl interested in what iv'e got to say...

Laughter

Mark: Summary: detailed surface mapping- an engineering geologist has had a v close look at things.

We did 20 boreholes... you saw where the drill rig was,

We installed inclinometers in the ground, the inclinometer is basically a plastic tube that goes in the ground n has a facility to drop a gopher down the ground... we can measure where the ground moved. Some of the most valuable info in the investigation has come from the inclinometers.

We put in piezometers or Casagrande standpipes which are boreholes (*that have been lined after drilling*) that are able to measure the level of the groundwater... It was a climate groundwater-driven landslide, so the lvl of the water is a key feature.

We did some borehole imaging which is a camera down the borehole and images the sides.

We brought core (*rock core. See Appendix B of the report*) and soil out of the ground...

We also had quite a bit of survey done so Council set up a pretty detailed surface monitoring locations system... wherever we could get a fixed point,

And that's the basis of the investigation that was done. It's pretty much garden-variety geotechnical engineering that was done. Any geotech would have gone through a similar process.

Slide: map w borehole overlays n cross section placements in plan.

Drawing 2. yellow line is extent of the landslide. Its also shows the red dots... 20 boreholes (BHs) or so are marked on there. You can c they span most of the area of the landslide. Extent of that covers up from russell rd down (*almost*) to the incised creek at the bottom... and as we progress through that I guess maybe the key ones to keep an eye on... imagine a cross section running straight down Baker St, it centres us on the area which appears to be the area most affected. The BHs that lie down Baker street are BH2, BH5, BH8 and BH10. Those 4 Bhs are key.

So in summary of findings I'm gonna talk about extent, magnitude, how much things have moved, the cause and try n give u a bit of an idea why did it happen in may 2025 rather than 1945 or in 10yrs time. What was the particular features of that night n the conditions around it that resulted in this happening.

So extent, n it's a similar plot (*"plot" is engineer speak for a computer image/drawing*) to the one I had up earlier, the yellow line is the mapped extent that we were able to identify. It correlates w the survey. Perimeter hasn't moved much but survey points within it have moved. Scarp has moved. Flanks down each side were also reasonably ok, they're a graded feature. You can see those red lines that lie within they're surfaces of cracks that have been mapped. Those features have been mapped within that yellow boundary. You can see they're oriented sub-parallel (*near parallel*) to Russell rd. They angle around towards the west from south, we'll see that in a little while. Other key feature there is 2 green lines n they're rock faces at the base of those blocks .. there were quarrying activities in those areas where the green lines are.

I could run through which properties have been affected but you guys know.. 122 russell 124, 126, 128, 130, 132 russell, that yellow line runs through the rear of all of those & encroaches on 124 n 122 Russell. And below that it encapsulates 121 vic 123, 124 126 & 128 victoria, sorta cuts 122 vic in half then runs across the back of 57 portland place then encapsulates 6-12 baker. They're the 16 evacuated properties then the other 3 impacted ones are at the fringe...

The magnitude... I've just used the survey data. I'll call it a heat map or a contour map, all the survey points in the red zone have moved more than 2m, orange zone have moved 500mm-2m, the yellow is a transition zone 100-500mm, green zone is < about 75mm. The reason that the yellow zone to the west isn't contoured out is that we didn't have safe access to do the surveys but you can imagine. .. it's a bit like concentric circles. Down baker st, the houses have moved down the slope 2m. In fact, 6 baker st has moved more than 5m up to today... Even up towards the scarp there's been movements maybe of a metre or 2m... each survey plots there's an arrow... they'll all angled in that direction. That's the direction that the survey pt has moved, they've moved in a south-souwest direction. N you'll remember those red lines on the plan before, those features on the surface have the same orientation.

New slide: Cause.

Section with BHs 2, 5 8 and 10, it's the nomenclature and the mapping is complicated, there's an enormous amount of information, but the key takeaway is the dotted lines n the question marks and the black lines which mark a coal seam that is found in the ridge below russell rd n passing down underneath Baker St & the orientation of the dashed lines that we've drawn through the coal seam. It's marked there the upper n lower split of the Dudley seam. There's a coal seam there within the subsurface that exists about 15m beneath Russell rd n it comes out somewhere near the incised creek. The coal seam's a key feature of the cause of this.

Other key feature- little blue triangles they mark the water level. The water lvl;s quite high, much higher than the creek lvl, & the groundwater level is also critical to the cause of the landslide.

1 of the things I wanted to impress upon u is how important that little slope of the line is there bc the coal seams are formed by sedimentation n they form horizontally, so you'll c bedded rocks running horizontal but geological processes will lead to them fold or incline. Regionally, the Newcastle Coal Measures (*this geology*) tend to slope down to the southwest at an angle of 2 or 3 or 4 or 5 degrees. Doesn't sound like much but it is significant bc it makes the slope vulnerable. Other side of Russell Rd, the ridge (*the hill on the Curzon Rd side*) is steeper but the angle of the strata has led to the vulnerability of this happening on your slope (*rather than the slope on the other side of the creek*).

(Mark has props- 2 blocks). If it's horizontal (*the orientation of one rock mass over another*), you need to push it in a particular force to make it slide. If I try to push it uphill it's even more (it

requires even more force). But if it's sloping down it's much easier. The 3 or 4 or 5 degree angle of the substrata is a key feature of the vulnerability of the slope and of all the landslides that you can c around the place in newcastle n elsewhere. So that finding is one of the key findings.

The other key feature is the high water level. This is a much more interpretive cross section now. The green shaded area is where the failure is occurring... If you went out on site and saw the scarp, it's gone down very deep into the ground... (*landslide depth is*) 9, 10, 11m depth below the ground there, down to meet the clay features that are associated with the Dudley Seam and then it goes down to the incised creek at the bottom. U can also c at the top the blocky structure that we've drawn in- there is pretty good rock there along russell rd. you can c the conglomerate exposed to the east. Why is it vulnerable to the landslide? Bc the rock is jointed n it starts to become weathered n as you go to the west it becomes more n more vulnerable. Another feature is (*he's demonstrating w blocks*) if the blocks are sitting like that at the top of Russell Rd n if the bottom block decides to leave, the block above is unsupported and there's a stress relaxation n a vulnerability left n that's part of what needs to be brought to this for the Russell rd properties which in some cases lies quite a way above the landslide extent. There is a vulnerability that remains (*to the land above the scarp*) through the loss of support downslope n the stress relaxation that's occurred in those rocks. You'll see that we've mocked up the particular houses (*in the cross sections*)... that green line darts down into the backyard of 126 Russell Rd, 126 has been affected but hasn't been affected to the same degree. There's a lot of information there. Plz have a look when u get a chance.

(New slide) I put this in specifically bc I thought thisd be something you're all interested in -the site was likely in a state of marginal stability already due to the topography-it's sloping. Baker st isn't as steep as Brown st in Newcastle (but) the geology (*under Baker St*) has the dudley seam n the clay seams in it which are part of the issue n iv'e noted there that it was in this (unstable) state prior. There were some indications of instability prior to May 2025.

We also found indications in the BHs on russell rd that the clay shows that it's previously been moving around.

2nd dot point- unusually high rainfall following unusually high preceding rain. 121 recorded how much rain?

Warren: *trying to remember*

Julian: 8 inches?

Mark: 198mm

Warren: What'd you ask me for?

Laughter

Mark: ...your record for the preceding days is included in the report... Regional microclimate around there (*New Lambton*), for whatever reason this area got v high rain, and it had preceding high rain. It leads to a lot of surface water running around the place, leads to a rise in the groundwater lvl.

3rd pt :stability is a function of the topography, there was no sig change..., you find ppl digging the toe out and it comes down, I don't think the toe changed much. Geology is a given- didn't change much. It's (*the cause of the landslide*) a function of effective stress, and that's a different concept for us to wrap our heads around. It's also a function of the soil n rock properties. They're sort of fixed as well but they can vary as this landslide develops.

Geotech engieners look at slope stability (*got a slide on now of a failure surface screenshot from slope 2D(?)*)... The way we calculate the stability for these things is on the bottom of that circle-we didn't have a circular failure, it's more a translational plane I think w a hook at the top- there's a resisting force in the ground (*near the toe*) stopping it from going n there's a pushing down force

(*near the scarp*). If these forces are in perfect balance we have a Factor of Safety (FoS) of 1 but we don't want that, it's marginal. We're happier with a FoS of 1.5, so, a resisting force 1.5 times more than the pushing down force. I said a couple of times ago I thought this slope had a marginal FoS even when the houses were built there.

Other feature is that the resisting force is reduced by the water lvl rising. So the water becomes key. If the soil is unhappy n unstable in dry or marginal weather n then we get 198mm of rain, it can be enough to tip it into a $FoS < 1$ & the ground moves. I'm showing that to emphasise how important the water is.

The second feature I wanted to impress upon you is the importance of the properties of the soil n rock. That's the revisiting force .if we had solid sandstone there the sandstone isn't gonna move bc the sandstone has a v.high strength n isn't going to shear. Clay seams they tend to slide. (*Soil and rock*) properties are a given but 1 of the features is that... clays are made of microscopic "plates" n where they sediment out they find a house of cards sort of structure. When they shear (*fail*) the plates all line up n when they're in this form they'll .., you'll end up w a residual (*residual strength*) where all the plates have given up, they've all laid down, n you'll end up w a different resisting force or a different friction angle of the soil. N we either had this state in the soil in this slope before the landslide, we didn't know bc we didn't look, but we definitely have it now. The clay is stronger pre-failure than it is post-failure. After failure you end up with a soapy, slippery surface in the ground that maintains a vulnerably n you can't really get it (*the peak strength*) back.

Andy: is it that the clay layer hasn't been wet in a long time n now it's got wet, or is it usually wet but it's just more saturated?

Mark: I don't think it has ever been dry bc it's below the groundwater table, but it's only shearing that's gonna reach this residual state. So in the absence of shearing it's gonna sit here happy but after shearing it's gonna be... more prone to mvmt

q: had a increased (*couldn't hear*)

Mark: 2 things: effective stress has decreased cos the water has come up. It's not that the water has softened it (*the clay*)it's the movement which has lined up all the plates & the clay essentially become weaker. So there's 2 things happening- the water level's risen &.., there's movement. It snowballs from there.

It's still vulnerable to mvmt. There's a graph that looks like that in the report. Rainfall in v axis, date in horizontal axis. Blue spikes are rain. Scale is couple of hundred mils. These first couple that's when the landslide happened. In august we got a big spike n there was another rush of mvmt. The night u were there was the first rain event n u can see .. sry, all the coloured lines r the mvmt of the survey pts n some of them r moving 2m... In August subsequently out the front of 6 Baker st moved another 2m as a consequence of the groundwater rising again... We've been going thru a dry period but we can imagine that if we get another injection of water in the absence of doing something were vulnerable to mvmts.

What now?

We can't change geology, effective stress and water is a prob, the soil is now vulnerable, we have to find a way to intervene. Effective remediation will require long term monitoring n staged implementation n will likely require a combination of...

Another lil document...surface n subsurface drainage, so that gets at the water problem n potentially tries to lowers the groundwater level. We did some modelling- if you lower the groundwater table by 3m you can get a good FoS. It has to be able to manage a 250mm rainfall night.

Deep subhorizontal drains to lower the groundwater.

Toe berm at bottom as a counterforce. We've modelled that n we found that it will help at the toe but not further up.

4th one is retaining structures or spaced piles, n we saw that green failure zone at a depth of 10-4m. If u r gonna try to put something rigid in the ground it needs to be into the rock underneath so there needs to be something 15-20m deep at the top and a lil less down the bottom.

This landslide mass is 100,000 cubes or so, on their own piles are not gonna be a solution on their own.

It's hard to re-profile that site. youve got Russell rd at the top & the creek at the bottom. If we were gonna engineer something there u could start to do it w something that had a higher friction angle, you'd have to dig out material, inevitably that's highly destructive n means the loss of everything that's there n end up w an engineered site a lil like what you see what ended up at thredbo.

Last 1- full excavation n replacement of the landslide mass. It's impractical. The other key thing is most of these sites aren't suitable at the moment or potentially anymore for development. Bc it's not like (takes box) the stuff has slid as a solid block. That soil sheared and mixed and shattered and weakened, the BHs do show there has been widespread disturbance so any attempt to go out n rebuild on these needs to acknowledge that the ground's compromised. Best place to go is the soil underneath- it's stable, otherwise I'm trying to build on a moving mass that's lost a lot of its strength.

...

You can see at BH5 and 8 and 10 the little blue lines,, it shows the deformation of the yellow pipe in the ground just adjacent or below the scarp and you can see it's (the inclinometer has) sheared, it's gone sideways at the green line. The key piece of info ,, it's gone 70-80mm and then we couldn't read it anymore cos it's sheared off. Most of the mvmt has occurred at that deeper lvl.

Slide: what now?

The landslide mass will not be suitable for supporting infrastructure without significant intervention...

2nd pt stab will require a co-ordinated site-wide approach,, The landslide affects each of the 19 affected properties differently. As Andy said there are some separate advice that's going to come around... the Baker st properties have diff issues than the Russell rd properties n so forth. I hope I've given you a bit of a flavour of the geotechnical basis. Happy to take questions.

Wade: stand up if you wanna ask a question..

mel: take a break...

6:58pm

Mel: do the best we can to answer everything, plz raise ur hand... microphone,, online opportunity,, got to start q n a. we've had a q online-

"is there a scenario where there is no stabilisation at all done to the site?"

looking for one of my CoN colleagues

Andy: a do nothing option is not an option. In terms of "can it just be left to its own devices?" the answer is no. If nothing is done it's likely that there could b continuation of mvt along Vic st . I suppose it comes down to what needs to b done to stop it moving,,

Mark: 1 other consideration: Russell rd is a regional rd n in the absence of doing something, Russell rd retains a vulnerability that is not sustainable

q: sylvain: further to that q, is there gonna be monitoring that's gonna be addressed outside of the current danger zone? Bc there's an awful lot of ppl who r gonna look at this n say "r we next?"

Rob: Andy mentioned b4 that we had some continuous monitoring going in n that will go in just outside the zone

andy: So to expand, it's likely that a monitor will be installed in front of 122 Victoria St, 119 Vic St, 122 russell rd, 124 rusl, n out the front of 128 russell rd, nominally... 3 in the verge between gutter n footpath, 2 just outside the gates on vic st, n with those 2 there's a 3rd device further back n it's not expected to move n that helps read what's going on. It does 2 things- helps CoN manage resources n provides real time monitoring n we can have trend data. They'll be little devices on a 3m pole.

Caroline: a few houses have collapsed, we're no 6 Baker. If we were to remove the rubble n we get more rain, is that likely to speed up the slide or will that impact the area further?

Mark: to remove the rubble of the house, I don't think it'll have too much impact. It is moving n it will continue moving n removing the rubble n the house shouldn't change things.

Mel: online q: for the RA, where does the responsibility of the decision to stabilise the land lay, is it the state n if so which dept?

I can confirm we are meeting w the recovery group, discuss what our options are moving fwd under relevant...

Julian; I was listening to you on the radio... 100 mil dollars to fix it, where does that leave us?

JB: I can't answer your q tonight. Probably not gonna have answer in weeks or months. Need to have conversations w RA. I'd love to give news but there isn't. What you saw tonight, could be 130 mil plus... I can't imagine that any gov is going to-

jul- that could happen-

jb: in the ABC interview I was asked the q of buybacks, to me that's... 6 months ago that's where I thought this would get to but you still gotta go through the process of exploring it. I don't think the.... They (*the RA*) do do buybacks they've only done it once, it only applied to one disaster

Jan: as mel said we're gonna talk about the options, everything is gonna be discussed w council. We don't have a bucket of money sitting there for this... I don't have an answer for you but we're absolutely exploring. NSW gov is invested in this n we will continue to work w council

jb: that is the best that any of us can expect to hear from the NSW gov right now... Trying to find one solution that satisfies all property owners is going to be challenging... But having this info allows us to have meaningful discussions w the RA

Julian: apart from meeting w the Council, will you (*NSW RA*) be meeting w residents?

Jan: trying to make sure everything goes through council bc they're co-ordinating it. We're absolutely on the committee, ... I assume that once we have information we will be putting it out to you but it's just a matter of when that is

jb: to be fair, to ask janelle to give us a time line...

Julian: for sure

jb: need to be patient, the fact that the RA are here tonight matters

Nathan: This doesn't need to be too loud, I watched the committee on friday,, there was meetings w the RA that I wasn't aware of. I don't need to be aware of the content but it would have been helpful to know that CoN met w the RA. Just to show communication...

Jb: the RA were attending our meetings n you would know that bc you were getting updates of when the recovery meetings were. In terms of our meetings w the RA, I had 2. one was at newcastle airport, it was blunt “we’re not getting involved”-

Nathan: it’s not a criticism, it’s one of the things that would have got ppl thinking things are going-

rob: ...no tangible info that’s come out of that meeting

Nathan: ...tangible information doesn’t need to come out, it’s just (knowing that) something’s occurred

Rob: ty

mel: online q: “so the site is not going to have the 130 mil stabilisation? What are the other options?”

andy: I think it probably we’re really fast tracking a lot here... That’s perhaps, when we say stabilisation, there’s “stabilisation of the site” could be stopping the landslide moving to the point where it’s creating more damage, or it could mean full remediation (putting everything back where it was). All options will be expensive n all options will take a long time. There is no quick pathway fwd. Working back from a full restoration it may look to ensuring Russell rd isn’t at risk, may look to preventing further creep along Victoria st n Portland pl, demolition of all houses, re-profiling the site n drainage structures,. I don’t think there’s a one answer. Important to understand the definition of stabilisation between stopping something getting worse and putting it all back to how it was .

Mel: the other part of the q is “what are the options that don’t cost 130 mil?”

Rob: that’s what we’ll need to continue working through. We’re gonna be working w the RA to look at solutions. 130 mil is really a figure to show the magnitude of this should we return it to the pre-landslide conditions. That doesn’t replace your homes, though. That just restores the ground.

Jb: we can’t give you the options tonight. My expectations are that we’ll be guided by the RA- the best guide to the future is to look to the past. Lismore 2022 there were ppl who felt they weren’t adequately compensated w their buy back n ppl who were. If I were you I’d ask how has the nsw gov previously satisfactorily done buy backs? , That’s why I didn’t shirk the q,, I think at some pt in the future that’s where you’ll end up (buy backs).

Caroline: if u have the insurance payout you’re not eligible for a buy back?

Mel: not necessarily...written for a specific event...signed off by state n commonwealth governments.

Jan: when we talk about buy backs- 1 is land 2 is a house. There r 2 things we need to consider w this...

Mel; to clarify, if you’ve been paid out for home & contents you won’t be paid out from the state. The q will be “will you be able to get compo for the land?”

Warren: we’re gonna demolish, particularly as it’s getting more n more expensive as the building falls down. How are we going with... for a draft set of terms for a demolition order? What’s the

likelihood of us getting on to be able to demolish?... How long before we get permission and what will be the general terms?

Jb: can I ask a blunt question, why do you want to demolish now if the geotechnical report says it's highly unlikely that development is gonna be permissible? If I was a resident I wouldn't demolish right now.

Warren: Couple of things, who's going to demolish if we don't?

Jb: whoever buys it

w: ...I know the 2022 one, the land had to be clear of all buildings and houses before buy backs...

Warren turns to Janelle to get confirmation

jan: I can't remember,

Warren: from memory, the 2022 buyback scheme, the land had to be completely cleared. Secondly it's becoming more expensive to demolish every day. Our insurance company's paid us, nothing goes down in price and as the building falls down you can't separate various materials (and recover cost)...asbestos... e.g now 6 Baker St house is down, now you've got mixed waste...

Jb: price can go down if instead of doing 16 different demos that you do a whole lot. Demolishing 5 properties will be cheaper than one...

Warren: understood. This is the first time it's been raised. Over the last 2-3 months we've been chasing the general terms for demos, we also have contingent risk re liability...

jb: I just don't want anyone spending money unnecessarily

Warren: I'm happy with that!

Laughter

Warren: again, first we've heard about it so this is why we have these meetings...

Rob: we're supportive of these demolitions. We're at the point (now after the geotech report) that we can complete the DCO. There's been discussions around the electrical cabling... that's not something we can necessarily do... the demolition contractors can manage that...

Wayde: price did go down- NSW EPA waived the waste levy, saving 1.79 per tonne also saving disconnecting the elev service.

Jb: I don't know if that has been communicated to residents that we've been in discussions with NSW EPA for some time around waste levies for residents... But regardless costs are costs.

Mel :we had communicated that we tried to seek that... came late Friday

Warren: is that time-limited?

Wayde: it's 12 months from the time of the first demo but I'll take that on notice.

Laura: we'd also been thinking about demolishing but it was more that we had a lot of looting n... we've had to organise our own boarding up, so the demolition comes into play n we've got Shane still living next door,, worried about fires so when I think about demolition I think about safety and security and getting the house down so that we can relax that it's gone

mel: ...we know now what some of the options are ..obviously the outcomes of our discussions w the state will impact what individuals and groups can do. To get the best outcome for everybody we need to go to the table (to discuss). There's a couple of other things that we've communicated that we're actively advocating for...

Wayde: 28th feb that levy expires...next year

Rob: gonna add to that, Laura, if you're wanting to demo now.. starting to collaborate w other owners it will be cheaper, reduce the stress, you start getting into different lvls of demo, they can manage it quicker, significant price difference.

Yan: I'm from 122 vic. This is the first time I've been included to this kind of meeting... So 9 months, my property got damaged, but bc Im still living in the property I was not assessed to any of this conversation. N bc Im still in the property , my insurance didn't accept my insurance claim. So I'm stuck... Other owners they are out, they don't have to worry. For me, I am stuck w the house and the land. There is gonna get more (mvmt) and there is no solution for me until the house got collapsed. Idk how long this process is gonna take. Looks like I'm sitting on a time bomb waiting for it to happen n I have no help from anybody.

Rob: We're here to help...originally it was the 16 properties who were evacuated where the focus was ... now it (your property) is mentioned in the report., and perhaps there is something (in the report) that you can link that to to make a claim on.

Jb: your insurers would have rejected ur claim based on the fact that you're not in the danger area but now you have that geotech report.

Mel: sorry I missed that. You'll have access to the report...

Suzy: based on what Jeremy said, r we in a better position to hold off n not demolish, n in the January meeting we did talk about getting a blanket letter from,, all the different services that were saying that 16 houses were permanently disconnected, is that not happening now?

Wayne: we've got documentation in relation to the utilities being disconnected. I think in jan the discussion was about us arranging further disconnections... We're not in a position to do that... The water utility has to be disconnected physically inside the meter,, lvl 1,, power disconnection... we don't have the ability as a council to do that

Suzy: But haven't we asked it all to be done for the houses in the zone...

Wayne: we can't remove your meter-

Suzy: no-

Wayne: we've disconnected the mains...

Suzy: Wouldn't we ask the utilities people to do that so they can confirm that it's been done to their standard?

Wayne: no, ausgrid won't go into your property and disconnect you... I don't think there's many service poles left. The actual water, has to be disconnected inside your property.

Andy: I understand where you're coming from..

Suzy: it was from our demo guy, they wanted clarification

Andy: demo guys can organise that and do that and it's probably better that they do it. They may organise contractors and talk with AusGrid and do it (disconnect the services). They control their risk. Easier for them to do it.

Suzy: ok...

Andy: ...

...it's not uncommon.

Suzy: based on what jeremy bath said I think many ppl will say "I don't wanna spend money if I don't have to", but there's consequences ... us being at the top of the hill...is there a certain order we (all residents)should do this (demolish houses)?

Rob: ...Baker st, it's gonna be difficult to demolish 10 n not impact 12 vice versa... that's something a demo contractor would be aware of, there will b some structural reports n advice given as well... It makes sense but say there's somebody who wants to demo n neighbours don't, that needs to be considered by the demo contractor... about the electrical connections, as a good demo contractor I'd want to make sure that electricity is cut off,, due diligence...

Warren: solar panels generate power as well...

mel: online question...

...

...

Andy: report w the structural focus provides you that answer...

We have someone from the compliance team next meeting...

...

...

jb: we're not here to tell you that all 16 properties need to be demolished but you're all intelligent people, starting the conversation w the RA in terms of responsibility for recovery. does this continue to be low severity,, obvious that this is not low severity.

first convo is not gonna b "if state gov take on responsibility, ok demolish or not demolish?" we have to follow a process. We're not here to tell you that all houses have to be demolished.

Jing: that's good to hear bc our situation is unique. Our house renovation isn't finished. Our insurance payout covers the original home but not the renovation. So we got the payout but we still have a big gap on mortgage to pay. I'm... worry about the rental for next year. We're struggling.

Jb: it's probably timely to update you in terms of, in this room tomorrow night there'll be a council meeting.., one will be the endorsement of the geotech report. The councillors will get the same presentation from Mark, you'll be able to come to the council meeting or watch it online. Part of

what I'm proposing is that they go to the RA with an ask: take on responsibility this is not low severity.

the 2nd will be financial hardship. We r aware that any support you are getting expires end of may... your property's probably worth zero dollars you can't move back in you can't demolish it, but you still gotta pay rent

Jing: yeah we got a payout but we still pay for mortgage

jb: council meeting, we write to the NSW RA to ask for rental support that's enough for you to continue with your current rental arrangements., we don't have the solution tonight. Weve got the nsw RA willing to meet n engage w us n that's great but that's the start. We're focused on trying to get you another 12 months of financial assistance, can't come from insurance,, that's , my focus is getting that commitment from nsw gov.

mel: online: will residents be part of the conversations between CoN and RA?

We'll meet w them next week but the voice of residents is critical. Inviting residents is a decision discussion for the RA to have. Staying in contact w us is really important but also a reminder about the privacy n bc I'm well aware ppl in the rom want different things... A cohort of 19 properties now n privacy is important to me as we move fwd.

Jb: any discussions we have w the NSW RA we're advocating for you but not making decisions for you, we don't have that legal right. But we can facilitate n advocate n try n problem solve but we don't get to reach a deal with the nsw go v on ur behalf. If I feel we're progressing in a positive way, I'd like to think that you're given an opportunity n given a voice to that. Not fair for me to be giving commitments tonight bc I can't speak for RA...

Jan: I can't speak on behalf of the nsw gov who have to make decisions that are in line with ,,, we have discussions w council,,, taking into account what you fed through... I'm cognisant that there are individuals, it needs to go to the treasurer then to go to the prime minister. , not to put you off but that's the mechanisms that we need to go through.

Jb: the nsw ra is an agency of the nsw gov. it's a 50 50 split between the state and federal... The focus is on trying to get this resolved asap that means less ppl in the room.

Mel: any other questions? In terms of whats next .. we've taken notes you will get them.,. email,. Concept paper for stabilisation/remediation,... we want you to reach out,, at this stage we wanna bring you back together for q n a. send questions to us as early as possible so we can get the right answers. Is a week enough for ppl? Show of hands? Ok that seems to be ok (a week) in terms of time

jb we can have another meeting after that, it's not one and done! ...Let's get together in a weeks' time, you'll be more educated, we'll just keep meeting and answering your qs as best we can

Jeremy E: before you start trying to digest that deep pool (the report), as Andrew referred to earlier, we have distilled the info into a short letter. I encourage you.,. let us get that letter to you, that'll guide you a bit through the maze of the technical document.

Mel: ...those individual letters hopefully win 48 hours. The email you'll get tonight will be a copy of the geotechnical report. We can include tonight a link to the presentation... any questions, reach out...just wanna re-iterate that it's a milestone, still traumatic n emotional, ppl facing unknown futures n financial hardship, ,, really import to keep conversations flowing that you don't sit there

wondering that you do reach out n ask. I know you've all got busy lives.,. ty for your time. C u again in a week.

applause